

SPECIAL ISSUE



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GAZETTE NOTICE No. 1699

THE CONSTITUTION OF KENYA

THE COUNTY GOVERNMENTS ACT, 2012

(No. 17 of 2012)

COUNTY GOVERNMENT OF KAKAMEGA

SELECTION PANEL ON APPOINTMENT OF CHAIRPERSON
AND MEMBERS OF THE KAKAMEGA COUNTY PUBLIC
SERVICE BOARD

APPOINTMENT

IN EXERCISE of the powers conferred by section 58A sub-sections (1) and (2) and section 30 sub-section (2) paragraph (1) of the County Governments Act, 2012, I, Fernandes Barasa, Governor Kakamega County, with the approval of the County Assembly of Kakamega, appoint –

under paragraph (2) (a)–

Teresa Maina – *Chairperson;*

under paragraph (2) (b)–

Nathaniel Matalanga (Eng.);

under paragraph (2) (c)–

Johnson Ongong'a Udoto;

under paragraph (2) (d) –

Alfred Indeche;

under paragraph (2) (e) –

Robina Orute;

to be the chairperson and members of the Selection Panel of the Kakamega County Public Service Board, with effect from the 11th February, 2025.

Dated the 11th February, 2025.

FERNANDES BARASA,
Governor, Kakamega County.

GAZETTE NOTICE No. 1700

THE CONSTITUTION OF KENYA

THE COUNTY GOVERNMENTS ACT

(No. 17 of 2012)

THE NATIONAL RATING ACT

(No. 15 of 2024)

THE KAKAMEGA COUNTY VALUATION AND RATING ACT

(No. 5 of 2023)

COMING INTO FORCE OF THE KAKAMEGA COUNTY
VALUATION ROLL, 2024

PURSUANT to the provisions of Article 183 (1) (c) of the Constitution of Kenya, 2010, section 36 (1) (c) of the County Governments Act, 2012, section 34 (7) of the National Rating Act, 2024, section 28 (1) of the Kakamega County Valuation and Rating Act, 2023, to ensure efficiency, accountability and transparency in administration of property rates, the Executive Committee Member responsible for matters relating to Valuation and Rating of Property gazettes the coming into force of the Kakamega County Valuation Roll, 2024 as approved by the County Assembly of Kakamega on the 11th February, 2025.

Dated the 11th February, 2025.

ARCH. PATRICK K. WESONGA,
Ag. CECM, Lands, Housing, Urban Areas and Physical Planning.

GAZETTE NOTICE No. 1701

THE CONSTITUTION OF KENYA

THE NATIONAL RATING ACT

(No. 15 of 2024)

THE KAKAMEGA COUNTY VALUATION AND
RATING ACT

(No. 5 of 2023)

LAND RATES LEVIES

PURSUANT to the provisions of Article 209 (3) paragraph (a) of the Constitution of Kenya, 2010, section 15 sub-section (3) of the

National Rating Act, 2024 and section 33 of the Kakamega County Valuation and Rating Act, 2023, notice is given to the general public that land rates as per the Kakamega County Valuation Roll, 2024 levied by the County Government of Kakamega for the year 2025, shall become payable by 14th April, 2025 and shall be levied as follows—

S/No.	Registration Section	Development	Rate Struck
1.	Kakamega Municipality/Block I, Block II, Block III, Block IV	Commercial	0.17%
		Industrial	0.17%
		Residential	0.15%
		Satellite commercial or other developments	0.13%
2.	Freehold plots around Kakamega Municipality	Commercial	0.17%
		Industrial	0.17%
		Residential	0.15%
3.	Mumias Town Centre	Commercial	0.17%
		Industrial	0.17%
		Residential	0.15%
		Satellite commercial or other developments	0.13%
4.	Freehold plots around Mumias Municipality	Commercial	0.17%
		Industrial	0.17%
		Residential	0.15%
5.	Major Markets/Urban Centres;	Commercial	0.17%
6.	Medium Markets/Towns Plots	Commercial	0.15%
7.	Freehold plots around the major urban centres	Commercial	0.17%
8.	Freehold plots around the medium market centres	Commercial	0.15%

Dated the 11th February, 2025.

LAWRENCE A. OMUHAKA (DR.),
Ag. CECM, Finance, Budget, Economic Planning,
ICT, e-Government and Communication.

GAZETTE NOTICE NO. 1702

THE COUNTY GOVERNMENTS ACT

(No. 17 of 2012)

COUNTY GOVERNMENT OF HOMA BAY

THE PUBLIC OFFICER ETHICS ACT

(No. 4 of 2003)

IN EXERCISE of the powers conferred by section 33 (1) of the Public Officer Ethics Act, 2003, the Homa Bay County Public Service Board establishes the following administrative Procedures:

THE HOMA BAY COUNTY PUBLIC SERVICE BOARD PROCEDURES FOR ADMINISTRATION OF PART IV OF THE ACT

PART I — PRELIMINARY

Citation

1. These Procedures may be cited as the Homa Bay County Public Service Board Procedures for Administration of Part IV of the Act.

Interpretation

2. In these Procedures, unless the context otherwise requires

“Act” means the Public Officer Ethics Act, 2003.

“Authorized officer” means a person to whom the Board has delegated its powers and functions in accordance with section 2 (a), 2 (b) and 2 (c) of the County Government Act, 2012.

“Board” means the Homa Bay County Public Service Board.

“Declaration form” means the form set out in the Schedule to the Act in accordance with section 26 (2) of the Act.

“Commission” means the Ethics and Anti-Corruption Commission established under section 3 of the Ethics and Anti-Corruption Commission Act No. 22 of 2011.

“final declaration” means a declaration made in accordance with section 27(5) of the Act.

“initial declaration” means a declaration made in accordance with section 27(3) of the Act.

“two-year declaration” means a declaration made in accordance with section 26(1) of the Act; and

“Secretary” means a person appointed as a secretary to the County Public Service Board in accordance with section 58 (c) of the County Government Act, 2012.

Application

3. These procedures shall apply to the administration of Part IV of the Act with respect to the public officers for whom the Board is the responsible Commission.

Board's Administration Officer

4. The Secretary shall be the responsible officer of the Board for the purpose of the application of these Procedures.

Delegated powers and functions

5. The Secretary may designate in writing officers from among the staff of the Board to assist in the administration of these Procedures.

County Governments Act No. 57 of 2012

6. Where the Board has delegated its powers and functions under section 2 (a), 2 (b) and 2 (c) of the County Governments Act, 2012 to another person, the provisions of Paragraph 4 of these Procedures shall apply to that other person.

PART II — PROCEDURE IN RELATION TO SUBMITTING DECLARATIONS

Procedure in Submitting Declarations

7. (1) A public officer shall submit a declaration in the Form set out in the Schedule to the Act.

(2) The Board may use such measures as may be appropriate to facilitate a public officer to acquire the form referred to in subparagraph (1).

(3) The Board may publish the declaration form in a format that may permit the declaration form-

(a) to be rendered in digital format on a website; or

(b) to be downloaded from a website and printed out in paper format.

(4) Where a public officer is required to make a two (2) year declaration, the Board or the authorised officer, as the case may be, shall notify the public officer and provide the public officer with a declaration form on or before the 1st November of the year in which the two-year declaration is to be made.

(5) Where a public officer is required to make an initial declaration or a final declaration, the Board or the authorised officer, as the case may be, shall notify the public officer and issue that public officer with the declaration form at least thirty days before that officer is to make the declaration.

(6) Failure to issue a notification or a declaration form under subparagraphs (3) and (4) shall not be construed as a waiver of the responsibility of the public officer to submit a declaration under the Act.

Completion, submission and confidentiality of Declarations

8. (1) A public officer shall complete and submit the declaration form to the authorized officer to whom that public officer is responsible.

(2) The authorized officer shall submit the received declaration forms to the Secretary.

(3) The Secretary shall retain the declarations in safe custody.

(4) The Board, Authorized Officer or any other person shall not disclose, access, acquire or publish the information in the declaration except as may be provided in the Act, the Regulations and these Procedures or any other written law.

Register of declarations

9. (1) The Board or an Authorized officer shall maintain a register containing details of each public officer who is required to make a declaration in accordance with the Act including—

- (a) the name of the public officer;
- (b) the public officer's personal number;
- (c) the signature of the public officer acknowledging receipt of the declaration form;
- (d) the date the completed declaration was submitted by the public officer to the Board or to the authorized officer, as the case may be;
- (e) the designation, department to which the public officer belongs;
- (f) the name of the person authorized to receive the declaration on behalf of the Board or the authorized officer;
- (g) The signature of the person authorized to receive the declaration on behalf of the Board or the authorized officer; and
- (h) any remarks relating to the declarations.

(2) The Secretary shall maintain a register of declarations submitted by the authorized officer indicating:

- (a) the date an authorised officer submitted the declarations to the Board;
- (b) the name of the department or public body to which the relevant public officer making the declarations belongs; and
- (c) the number of declarations received from the authorised officer.

(3) The Board or an Authorised officer shall maintain separate registers in respect to initial, two year and final declarations.

Returns to the Board

10. (1) An Authorized Officer shall submit to the Board a report containing the information set out in sub-paragraph (a) (b) (c), by the 31st January following the submission of two-year declarations, the following information in relation to the two-year declarations by public officers under his or her jurisdiction—

- (a) the total number of public officers;
- (b) the total number of public officers who are unpaid or who are working on a part time basis or who are working on a temporary basis as at 31st October of 'the year of declaration;
- (c) a certified copy of the register maintained in accordance with paragraph 9;
- (d) the total number of public officers who have submitted declarations within the prescribed time;
- (e) the total number of public officers who have failed to submit declarations within the prescribed time;
- (f) any action taken by the authorized officer to the public officer who has failed to comply with the Act; and
- (g) any relevant remarks relating to the returns.

(2) The Secretary shall confirm the information provided under sub-paragraph 1(a) against the payroll.

(3) In the case of initial and final declarations, an authorized officer shall submit to the Board the information required in sub-paragraph (2) in respect of—

- (a) the six- month period between January and June on the 31st July; and

- (b) the six- month period between July and December, on the 31st January of the following year.

Returns to the Commission

11. (1) The Board shall, by 31st July, submit to the Commission a summary report of the declarations made by public officers to which the board is responsible under the Act. The report shall contain the following information—

- (a) the total number of public officers required to make a declaration whether initial, biennial or final;
- (b) the total number of public officers who have submitted declarations within the prescribed time;
- (c) the total number of public officers who have failed to submit declarations within the prescribed time;
- (d) any action taken by the Board on any public officer who has failed to comply with the Act; and
- (e) any relevant remarks relating to the returns.

PART III—PROCEDURE IN RELATION TO CLARIFICATIONS

Requests for Clarification

12. (1) A request by the Board for clarification under section 28 of the Act shall be made in writing.

(2) The Board shall analyse the declaration to ascertain if—

- (a) the declaration is false or incomplete;
 - (b) the declared assets are disproportionate to the officer's known income; or
 - (c) the income, assets or liabilities of the public officer raise concerns of impropriety or conflict of interest or any other breach of the code of conduct and ethics.
- (3) Where, it is ascertained that—
- (a) declaration is false or incomplete;
 - (b) the declared assets are disproportionate to the officer's known income; or
 - (c) the income, assets or liabilities of the public officer raise concerns of impropriety or conflict of interest or any other breach of the code of conduct and ethics;

The Board shall require the public officer to make a clarification in writing in accordance with section 28 (1) of the Act.

(4) Where, after a clarification by a public officer, the Board still finds that—

- (a) the declaration by a public officer is false or incomplete;
- (b) the assets of the public officer are disproportionate to his or her known income; or
- (c) the income, assets or liabilities raise concerns of impropriety or conflict of interest or any other breach of the code of conduct and ethics.

The Board may take such action as it considers appropriate including referral to the Commission, the Director of Public Prosecutions or any other competent authority.

Secretary to Inform Board Where a Public Officer Fails to Comply

13. (1) The Secretary shall inform the Board of any public officer who fails to comply with the provisions of the Act, the regulations or these procedures and the Board shall—

- (a) take appropriate administrative action; or
- (b) refer the matter to the Commission, the Director of Public Prosecutions or any other competent authority.

PART IV—PROCEDURE FOR THE DISCLOSURE, ACCESS, ACQUISITION OR PUBLICATION OF INFORMATION IN A DECLARATION

Disclosure and Publication of Information in a Declaration

14. (1) person who wishes to gain access to publish information in relation to a declaration under the Act shall—

- (a) apply in writing to the Board;
- (b) demonstrate to the Board that he or she has a legitimate interest in the information; and
- (c) demonstrate to the Board that the access to or publication of that information shall be in furtherance of the objectives of the Act.

(2) Where a person has made an application to the Board in accordance with this paragraph—

- (a) the Board shall issue the applicant with an acknowledgement slip in the form set out in the Schedule to the Public Officer Ethics (Management, Verification, and Access to Financial Declarations) Regulations;
- (b) the Board shall inform the concerned public officer of the application in writing;
- (c) the Board shall give the public officer an opportunity to make a representation in writing in relation to the application within 14 days; and
- (d) the Board shall take into consideration the representation by the public officer while determining the application.

(3) The Board shall determine an application made in accordance with this paragraph and communicate its decision in writing to the applicant within thirty days of receipt of the application.

(4) For the avoidance of doubt, the Board shall not release or part with the original declaration made by any public officer in satisfying the requirements of this paragraph.

(5) The Board shall maintain a register of applications and decisions made under this paragraph setting out—

- (a) the name of each applicant;
- (b) the date each application was received;
- (c) the name and personal number of the public officer who was the subject of the application;
- (d) the department or public body to which the public officer belongs;
- (e) a brief description of the information applied for; and
- (f) a brief description of the decision made in relation to the application.

Access to information in a Declaration

15. The Board shall not give access to the information in a declaration to—

- (a) the public officer who made the declaration unless the public officer can verify his or her identity; or
- (b) a representative of the public officer who made the declaration unless that representative—
 - (i) provides proof of his or her authority to act as a representative of the public officer; and
 - (ii) provides proof that shall verify the identity of the public officer.

Board to Decline Application

16. The Board may decline an application for access to a declaration if it is of the opinion that such disclosure would be a violation of any written law.

Decisions to be Final

17. (1) Except as provided under the Act, Regulations and these Procedures, the decisions of the Board in relation to a declaration by a public officer shall be final.

(2) Any person dissatisfied with the decision may appeal in accordance with the procedure set out in the Public Officer Ethics (Management, Verification, and Access to Financial Declarations) Regulations.

The Regulations to apply to this Part

18. This part shall be read and construed together with Public Officer Ethics (Management, Verification, and Access to Financial Declarations) Regulations.

PART V — PROCEDURE IN RELATION TO STORAGE AND RETENTION OF DECLARATION FORMS

Appropriate Mechanisms for Storage and Retention

19. (1) The Board shall ensure that mechanisms are put in place for the safe and secure storage of the declaration forms.

(2) The storage mechanisms established under sub-paragraph (1) shall allow easy access and retrieval of declaration forms.

(3) The Storage mechanisms may include manual, electronic, microfilm or any other form as the Board may consider appropriate.

Cessation of Retention of Information

20. (1) Where the period for retaining information obtained in accordance with Part IV of the Act has lapsed, the Board shall determine the action to be taken in due regard to any written law.

(2) The Secretary may make a written proposal to the Board in relation to the action to be taken by the Board in accordance with sub-paragraph (1).

PART VI—GENERAL PROVISIONS

Powers of the Board

21. Notwithstanding delegation of any function or power by the Board for the purposes of these Procedures, the Board may—

- (1) exercise the delegated power or perform the delegated function; or
- (2) on its own motion, revise a decision of the Secretary made for the purposes of these Procedures.

Review

22. (1) The Board may from time to time audit or investigate the manner in which an authorized officer has discharged his or her duties under these procedures; or

(2) refer the matter to the Commission or any other competent authority.

Matters not covered by these procedures

23. The Board may issue written instructions in relation to any matter that has not been provided for in these Procedures in relation to the application of Part IV of the Act.

Representations to the Board

24. The Board may consider representations made by any person in application of these procedures

Chairperson, Homa Bay County Public Service Board.